

Terms of Service

Watch Learn **Drive.com** Ltd t/a SmartDriving — Driving Instructor Platform

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1. About these terms

These Terms of Service ("**Terms**") govern your use of the SmartDriving driving instructor management platform, including its web and mobile applications (the "**Platform**"). The Platform is operated by **Watch Learn Drive.com Ltd**, trading as **SmartDriving**, a company registered in England and Wales whose registered office is at 1 The Courtyard, Goldsmith Way, Eliot Business Park, Nuneaton, CV10 7RJ ("**SmartDriving**", "**we**", "**us**", "**our**").

By creating an account on the Platform, or by using it, you confirm that you accept these Terms and our Privacy Policy. If you do not accept them, please do not use the Platform.

2. Definitions

- "**Account**" — a user account on the Platform.
- "**Customer**" or "**Instructor**" — a driving instructor (sole trader or business) that holds a subscription to the Platform.
- "**Pupil**" — a learner driver whose data is recorded on the Platform.
- "**Pupil Data**" — personal data relating to a Pupil that is entered, uploaded or generated on the Platform by an Instructor or a Pupil.
- "**Fees**" — the subscription, transaction and service fees set out on our website or in your Account.
- "**Services**" — the features of the Platform made available under your subscription.

3. Account registration and eligibility

To create an Instructor Account you must:

- be at least 18 years of age;
- be legally authorised to provide driving instruction in the United Kingdom, or be undergoing approved training to do so;
- provide accurate and complete information at registration and keep it up to date;
- be acting either for yourself as a sole trader, or on behalf of a business or organisation that you are authorised to bind.

You are responsible for all activity on your Account, including by staff or contractors you give access to. You must keep your credentials confidential and notify us immediately if you suspect unauthorised use.

Pupil accounts may be set up by an Instructor on behalf of a Pupil, or directly by a Pupil. Where a Pupil is under 18, the Instructor is responsible for ensuring that appropriate parental or guardian permission has been obtained.

4. Subscription, fees and payment

4.1 Subscriptions

Use of the Platform is subject to a paid subscription. Subscription pricing, billing cycles and included usage allowances are shown on our website and in your Account.

4.2 Payment via Stripe

All payments to SmartDriving are processed through **Stripe Payments Europe Ltd** ("**Stripe**"). By using the Platform you also agree to Stripe's terms, available at stripe.com/legal. SmartDriving does not store payment card data; cards are handled directly by Stripe under PCI DSS-compliant infrastructure.

4.3 Marketplace payments and Stripe Connect

Where Pupils pay for lessons or packages booked through the Platform, payments are collected by SmartDriving through Stripe. SmartDriving then pays the Instructor for the lessons delivered, less the applicable platform and service fees, via Stripe Connect to the Instructor's connected Stripe account.

For these transactions:

- **Collection of payment.** SmartDriving collects payment from the Pupil. The Pupil's payment contract for the booking is with SmartDriving.
- **Delivery of the service.** The Instructor remains the provider of the lesson service to the Pupil. The Instructor is responsible for delivering each lesson safely, lawfully and to the standards expected of a Driver and Vehicle Standards Agency (DVSA) approved driving instructor, including holding all required approvals, insurances and a roadworthy vehicle.
- **Authority to collect.** The Instructor appoints SmartDriving as its agent to collect Pupil payments on its behalf and authorises SmartDriving to deduct platform and service fees before payout.
- **Payouts.** Instructor payouts are processed via Stripe Connect to the Instructor's connected Stripe account on the payout schedule set out in the Platform. The Instructor is responsible for keeping their Stripe Connect account in good standing and for completing any KYC or identity verification that Stripe requires.
- **Refunds and chargebacks.** Refunds and chargebacks initiated by Pupils are handled by SmartDriving in the first instance. Where a refund or chargeback is attributable to the Instructor (for example, a cancelled or undelivered lesson, or a failure to meet professional standards), SmartDriving may deduct the refunded amount and any associated fees from future Instructor payouts, or invoice the Instructor for the shortfall.
- **Disputes between Instructor and Pupil.** Where a dispute arises between an Instructor and a Pupil about the service delivered, SmartDriving may, at its discretion, mediate or hold payouts pending resolution, but is not obliged to do so.
- **Stripe terms.** Use of Stripe Connect by Instructors is also subject to Stripe's Connected Account Agreement, available at stripe.com/legal/connect-account.

4.4 Taxes

Fees are exclusive of VAT unless stated otherwise. We will apply VAT at the rate in force where required.

4.5 Late payment and suspension

If a payment fails, we will retry in line with Stripe's standard retry schedule. If a payment remains overdue, we may suspend or terminate your Account. You remain liable for any sums due.

4.6 Refunds

Subscription Fees are non-refundable except where required by law. We may, at our discretion, prorate or refund Fees where we cancel a subscription for reasons unrelated to your breach.

5. Acceptable use

You agree not to:

- use the Platform for any unlawful purpose, or in breach of any third party's rights;
- enter or upload data that you do not have the right to share;
- attempt to access, probe or attack the Platform, its infrastructure or other users' accounts;
- reverse-engineer, scrape, mirror or resell the Platform without our written agreement;
- impersonate any person or misrepresent your relationship with them;
- use the Platform to send spam, malware or other harmful content;
- use the Platform to harass, threaten or abuse any other user.

We may suspend or terminate any Account that breaches this section, with or without notice depending on the severity.

6. Your responsibilities for Pupil Data

You are responsible for the accuracy, completeness and lawfulness of all data you enter into the Platform.

6.1 Your role as a data controller

Where you record Pupil Data on the Platform, **you are the data controller of that Pupil Data and SmartDriving is a data processor acting on your behalf**. The terms of our processing are set out in the **Data Processing Schedule** at the end of these Terms.

As controller you are responsible for:

- ensuring you have a lawful basis under UK GDPR for processing Pupil Data;
- giving your Pupils a privacy notice that meets the requirements of UK GDPR;

- obtaining any consents that may be required (for example, for marketing, or for processing children's data);
- responding to data subject requests from your Pupils in respect of their Pupil Data;
- where required, registering with the Information Commissioner's Office;
- ensuring your own use of the Platform does not breach UK data protection law.

6.2 Free-text fields

The Platform contains free-text fields. You agree not to enter special category data (such as health, medical, racial or religious information) into these fields except where strictly necessary, lawful, and with the relevant consents in place.

7. HMRC integration and Making Tax Digital

If you connect your Account to HMRC for Making Tax Digital ("**MTD**") or other tax filing, you authorise us to submit returns and quarterly updates to HMRC on your behalf based on the data in your Account. You are responsible for:

- the accuracy of all financial data entered into the Platform;
- reviewing each submission before it is filed;
- meeting your statutory tax obligations;
- complying with HMRC's rules for taxpayers using third-party software.

We comply with HMRC's Developer Terms of Use and submit fraud-prevention header data as required by law. You consent to the collection and transmission of the technical device data required for those headers when you use the tax-filing features.

8. DAC7 platform reporting

SmartDriving is a "**reporting platform operator**" under the UK regulations implementing the OECD Model Reporting Rules for Digital Platforms (commonly known as DAC7). As a condition of using the Platform's payment features as an Instructor, you agree to:

- provide accurate identification information (including name, address, date of birth, National Insurance Number, Unique Taxpayer Reference, VAT Registration Number where applicable, and

bank account information used for payouts);

- respond promptly to verification requests from us;
- accept that SmartDriving is legally required to report your platform earnings and identifying information to HMRC each year.

We will provide you with a copy of the information reported about you before each annual submission to HMRC.

9. Service availability

We aim to keep the Platform available and performing well, but we do not guarantee continuous availability. We may carry out planned maintenance with reasonable notice where practical, and unplanned maintenance without notice where necessary.

We will not be liable for downtime or service interruption caused by:

- factors outside our reasonable control (including failures of internet service providers, hosting providers, payment providers or HMRC services);
- changes to your equipment, browser or local network;
- breach of these Terms by you.

10. Intellectual property

We own or licence all intellectual property rights in the Platform, including its design, software, logos, content and documentation. You receive a limited, non-exclusive, non-transferable, revocable licence to use the Platform during your subscription, solely for the purposes for which it is provided.

You retain all rights in the data you enter into the Platform. You grant us a non-exclusive licence to host, copy, transmit, process and display that data only as required to provide the Services and as set out in the Data Processing Schedule.

11. Confidentiality

Each party agrees to keep the other's confidential information confidential and to use it only for the purposes of these Terms. Confidential information does not include information that is or becomes

public other than through breach, was lawfully known before disclosure, or is independently developed.

12. Limitation of liability

Nothing in these Terms excludes or limits any liability that cannot lawfully be excluded or limited (including death or personal injury caused by negligence, fraud and fraudulent misrepresentation).

Subject to that:

- we exclude all implied warranties to the maximum extent permitted by law;
- we are not liable for any indirect, consequential, special, incidental or punitive losses, including loss of profits, revenue, business, opportunity, goodwill or data;
- our total aggregate liability arising from or in connection with these Terms in any 12-month period is limited to the Fees paid by you in the 12 months immediately preceding the event giving rise to the liability.

13. Indemnity

You agree to indemnify SmartDriving against any claims, damages, losses and reasonable costs arising from:

- your breach of these Terms;
- your use of the Platform in breach of law;
- any claim brought by a Pupil, member of staff or third party in relation to data you entered into the Platform.

14. Termination

14.1 Termination by you

You may cancel your subscription at any time through your Account. Cancellation takes effect at the end of the current billing period. Fees already paid are non-refundable except where required by law.

14.2 Termination by us

We may suspend or terminate your Account if:

- you breach these Terms and (where the breach is capable of remedy) do not remedy it within 14 days of being notified;
- you fail to pay Fees when due;
- you use the Platform in a way that could expose us or other users to legal, regulatory or security risk;
- it becomes unlawful for us to provide the Services.

14.3 After termination

After termination, we will retain your data for the retention periods set out in our Privacy Policy and as required by law. You may export your data within 30 days of termination by request to customer.care@smartdriving.co.uk. After that, your data will be deleted or anonymised in line with our retention schedule, save for data we are legally required to keep.

15. Changes to these Terms

We may amend these Terms from time to time. The current version is always available on our website. Where changes materially affect your rights or obligations, we will give you reasonable notice by email or in-app notice. Continued use of the Platform after the effective date of changes constitutes acceptance of the revised Terms. If you do not accept the changes, your remedy is to terminate your subscription.

16. General

- **Entire agreement.** These Terms, together with our Privacy Policy and the Data Processing Schedule, form the entire agreement between you and SmartDriving in relation to the Platform.
- **Assignment.** You may not assign these Terms without our written consent. We may assign these Terms to a successor in business.
- **No partnership.** Nothing in these Terms creates a partnership, agency or employment relationship.
- **Severability.** If any provision of these Terms is found to be unenforceable, the remaining

provisions will continue in full force.

- **Waiver.** A failure to enforce any provision is not a waiver of the right to enforce it later.
- **Third-party rights.** No one other than you and us has any rights to enforce these Terms.
- **Notices.** Notices to us should be sent to customer.care@smartdriving.co.uk. Notices to you will be sent to the email address on your Account or by in-app notice.
- **Governing law and jurisdiction.** These Terms are governed by the law of England and Wales. The courts of England and Wales have exclusive jurisdiction over any dispute.

17. Contact

If you have any questions about these Terms, please contact:

Watch Learn [Drive.com](https://www.smartdriving.co.uk) Ltd t/a SmartDriving

Scotswood House, Thornaby Place, Thornaby, TS17 6SB

Email: customer.care@smartdriving.co.uk

Telephone: 0800 09 88 321

Schedule 1 — Data Processing Schedule

This Schedule forms part of the Terms of Service between SmartDriving (the "**Processor**") and the Customer (the "**Controller**") and applies whenever SmartDriving processes Pupil Data on behalf of the Customer. It is intended to satisfy the requirements of Article 28 of the UK GDPR.

1. Subject matter, duration, nature and purpose

Subject matter: Pupil Data entered into, uploaded to or generated by the Platform.

Duration: For as long as the Customer's subscription is active, plus any period after termination during which we are required to retain Pupil Data by law or to support data export under clause 14.3 of the main Terms.

Nature and purpose: Hosting, transmitting, displaying, processing and storing Pupil Data so that the Customer can manage lessons, pupils, payments, communications and tax filings through the Platform.

2. Categories of data and data subjects

Data subjects: Pupils, parents and guardians, emergency contacts.

Categories of personal data: Identity, contact, lesson, progress, location, payment, communications, marketing and technical data, as described in the Privacy Policy.

Special categories: None processed by default. The Customer is responsible for ensuring no special category data is entered into free-text fields without an appropriate lawful basis.

3. Processor obligations

SmartDriving will:

- a) process Pupil Data only on the Customer's documented instructions, including with regard to transfers outside the UK, unless required to do otherwise by law (in which case we will notify the Customer in advance unless prohibited);
- b) ensure that personnel authorised to process Pupil Data are bound by appropriate confidentiality obligations;
- c) implement appropriate technical and organisational measures to ensure a level of security appropriate to the risk (the measures in section 15 of the Privacy Policy);
- d) only engage sub-processors with the Customer's general written authorisation (the current list of sub-processors is in section 9 of the Privacy Policy) and provide reasonable advance notice of any intended changes, giving the Customer the opportunity to object;
- e) impose data protection terms on sub-processors that are no less protective than those in this Schedule;
- f) assist the Customer in responding to data subject requests in respect of Pupil Data;
- g) assist the Customer in complying with its obligations under Articles 32–36 of UK GDPR (security, breach notification, data protection impact assessments and prior consultation);
- h) notify the Customer without undue delay on becoming aware of a personal data breach affecting Pupil Data;
- i) at the Customer's choice, delete or return all Pupil Data after the end of the provision of the Services, unless storage is required by law;
- j) make available to the Customer all information reasonably necessary to demonstrate compliance with this Schedule, and allow for and contribute to audits, subject to reasonable confidentiality and

security arrangements.

4. International transfers

Where Pupil Data is transferred outside the UK by SmartDriving or its sub-processors, appropriate safeguards under UK GDPR will be put in place, including the International Data Transfer Agreement or the UK Addendum to the EU Standard Contractual Clauses, or reliance on a UK adequacy regulation.

5. Liability

The limitation of liability in clause 12 of the main Terms applies to claims arising under this Schedule.

6. Audit

The Customer may request reasonable information about SmartDriving's compliance with this Schedule no more than once per year, on reasonable notice, and subject to confidentiality. On-site audits will be by prior agreement and at the Customer's cost.

7. Term

This Schedule remains in force for as long as SmartDriving processes Pupil Data on behalf of the Customer, regardless of termination of the main Terms.